

With the above standards in mind, and viewing the evidence in the light most favorable to defendant and drawing all reasonable inferences in defendant's favor, the court finds there is substantial evidence to support the jury's verdict. Plaintiff's motion for judgment notwithstanding the verdict is denied.

6. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

The motion for summary judgment or, in the alternative, summary adjudication is continued to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

7. S-CV-0051367 Brown, Maurice v. ClearCaptions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's amended moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all individuals who are or were employed by Defendants as non-exempt employees in California during the Class Period" of October 4, 2019 through October 6, 2024.

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the amended declaration of counsel Jonathan Melmed. The court also approves the proposed form of the notice attached as Exhibit 1 to the to Exhibit A of the amended declaration of counsel Melmed with two changes: on page 4, the Settlement